

OFFICE OF THE SECRETARY

PO Box 942883

Sacramento, CA 94283-0001



The Honorable Mark C. Kim
Judge of the Superior Court
County of Los Angeles
275 Magnolia Avenue
Long Beach, CA 90802

Re: Thailee Ros Nguon
CDCR No: T99924
Case No: NA048273-02
Date of Sentence: June 9, 2003

Dear Honorable Mark C. Kim:

The purpose of this letter is to provide the court with the authority to resentence inmate Thailee R. Nguon, T99924 pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1), based upon his exceptional conduct while incarcerated. PC Section 1170, Subdivision (d)(1) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Nguon has received four Rules Violation Reports since being received to CDCR on July 15, 2003, but has remained disciplinary free since December of 2015. Inmate Nguon is currently assigned to the California Prison Industry Authority's Career Technical Education in Computer Coding. His current supervisor recognizes inmate Nguon for all his hard work and amazing attitude, for always willing to assist his fellow Coders, and for being patient with them. Inmate Nguon also participates in Faith Support Group, Bead and Crochet, and College. Inmate Nguon has received numerous certificates and ten laudatory chronos from group sponsors, acknowledging his commitment and dedication to these self-awareness

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and improvement groups. Inmate Nguon also received two laudatory chronos from correctional and institutional staff commending him for his work ethic. Various staff at Pelican Bay State Prison have been interviewed in regards to inmate Nguon's current programming and behavior. Staff stated that inmate Nguon is an excellent candidate for resentencing, he has an exceptional attitude and work ethic, accompanied by tremendous sense of accountability over his own rehabilitation.

Having reviewed the enclosed documentation it appears that inmate Nguon's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



KATHLEEN ALLISON
Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Los Angeles County District Attorney's Office
Los Angeles County Public Defender's Office